

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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MALCOLM MELVIN,

Plaintiff,

SUMMONS

Index No.:

-against-

The Basis of Venue is:

POLICE OFFICER MICHAEL PANDO, Tax No. 952087
and POLICE OFFICER YAHKEEM WHITE, Tax No.
948604,

Location of Incident

Plaintiff designates BRONX
County as the place of trial.

Defendant.

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To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
August 9, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER MICHAEL PANDO, Tax No. 952087, PSA 7, 737 Melrose Ave,
Bronx, NY 10455
POLICE OFFICER YAHKEEM WHITE, Tax No. 948604, PSA 7, 737 Melrose Ave,
Bronx, NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX----- X
MALCOLM MELVIN,

Plaintiff,

INDEX NO.:**VERIFIED COMPLAINT**

-against-

POLICE OFFICER MICHAEL PANDO, Tax No. 952087
and POLICE OFFICER YAHKEEM WHITE, Tax No.
948604,**JURY TRIAL DEMANDED**Defendants.
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Plaintiff, MALCOLM MELVIN, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On August 13, 2015, at approximately 3:00 p.m. plaintiff Malcolm Melvin was subjected to an unlawful stop, frisk, search, detention, false imprisonment, and false imprisonment while lawfully present inside of 350 Brook Avenue, Bronx, New York. Additionally, the defendant police officers and subjected plaintiff to excessive force when they, amongst other things, punched plaintiff in the stomach and hit plaintiff with a baton all over his body, causing plaintiff to suffer pain and bruising to his ribs, stomach, and body. Plaintiff was transported to PSA 7 precinct where he was subjected to an unlawful strip search. Thereafter, the officers maliciously prosecuted plaintiff and denied plaintiff a right to a fair trial by initiating a prosecution against him, without probable cause by falsifying evidence, providing false, misleading and/or incomplete information to the DA's Office and by signing a Criminal Court Summons which contained false information about plaintiff. All charges against plaintiff were dismissed and sealed on October 2, 2015. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, unlawfully stripped search, used excessive force and denied plaintiff the right to a fair trial of plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

PARTIES

2. Plaintiff MALCOLM MELVIN is a resident of Staten Island, New York.

3. POLICE OFFICER MICHAEL PANDO, Tax No. 952087, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. On the date of the subject incident, POLICE OFFICER MICHAEL PANDO, Tax No. 952087, was assigned to PSA 7.

5. POLICE OFFICER MICHAEL PANDO, Tax No. 952087, is being sued in his individual and official capacities.

6. POLICE OFFICER YAHKEEM WHITE, Tax No. 948604, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. On the date of the subject incident, POLICE OFFICER YAHKEEM WHITE, Tax No. 948604, was assigned to PSA 7.

8. POLICE OFFICER YAHKEEM WHITE, Tax No. 948604, is being sued in his individual and official capacities.

9. Upon information and belief, it should be noted that at the time of the subject incident POLICE OFFICER YAHKEEM WHITE's legal name was POLICE OFFICER YAHKEEM ALLAH.

10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On August 13, 2015, at approximately 3:00 p.m., plaintiff was lawfully inside of a deli located in the vicinity of 350 Brook Avenue, Bronx, New York when he was subjected to an unlawful stop, frisk, search, detention, false imprisonment, and false imprisonment.

16. At no time prior to being unlawfully stopped by the defendant officers did plaintiff commit a crime or behave in a manner that gave the police officers a reasonable and objective basis to believe he had committed or was committing a crime.

17. Nevertheless, the defendant police officers unlawfully handcuffed and unlawfully arrested plaintiff without legal justification or probable cause.

18. At no time relevant herein did plaintiff resist arrest in any way.

19. Thereafter, the defendant police officers unlawfully searched plaintiff.

20. At no point in time did the defendant police officers recover any guns, drugs, or contraband of any kind from plaintiff.

21. Suddenly, without provocation or legal justification and while plaintiff was handcuffed, the defendant police officers began punching plaintiff in the stomach and hitting him all over his body with a baton causing plaintiff to suffer physical injuries.

22. Thereafter, plaintiff was then placed in the back seat of the police vehicle and transported to the PSA 7 precinct.

23. At the PSA 7 precinct, plaintiff was fingerprinted, photographed, and unlawfully detained in a holding cell.

24. Thereafter, while at the PSA 7 precinct, the defendant police officers unlawfully conducted a strip search of plaintiff without reasonable suspicion or probable cause.

25. Specifically, plaintiff was forced to take off all of his clothes and shake each piece of clothing out.

26. Plaintiff was then ordered to turn around, and with his back facing the defendant police officers, plaintiff was forced to bend over and spread his buttocks and cough.

27. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

28. On August 13, 2015, at approximately 8:00 p.m., in order to cover up their unlawful stop, question, frisk, arrest, and strip search, the defendant police officers issued plaintiff a summons for Disorderly Conduct and plaintiff was released from the precinct.

29. The defendant police officers wrote false, misleading, and incomplete information in the summons that was issued to plaintiff.

30. After plaintiff was released from the precinct, on August 13, 2015, as a result of the excessive force used by the defendant police offices, plaintiff was forced to seek medical treatment for his injuries at Lincoln Hospital.

31. Thereafter, on October 6, 2015, plaintiff appeared in Bronx Criminal Court and found out that all charges against him had been dismissed on October 2, 2015.

32. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, unlawful strip search, use of excessive force, and denial of fair trial and due process rights to plaintiff.

33. The unlawful stop, question, frisk, search, false arrest, false imprisonment, malicious prosecution, unlawful strip search, use of excessive force, denial of due process, denial of a fair trial, against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

34. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.

35. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, unlawfully searched, falsely arrested, falsely imprisoned, malicious prosecution, subjected to denial of his due process rights and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

36. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 35 with the same force and effect as if more fully set forth at length herein.

37. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

38. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

39. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

40. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

41. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

44. The conduct of defendants in stopping, frisking, and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

45. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

46. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

47. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop and search inside plaintiff's, pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

51. Defendants lacked probable cause to search plaintiff.

52. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 55 with the same force and effect as if fully set forth herein.

57. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

58. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

59. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

60. In withholding/creating false evidence against plaintiff Malcolm Melvin and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

61. As a result of the foregoing, plaintiff Malcolm Melvin, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment

Rights

64. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 63 with the same force and effect as if more fully set forth at length herein.

65. The use of excessive force by defendants, by punching plaintiff in the stomach and hitting him with a baton all over his body, was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

66. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

67. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

SEVENTH CAUSE OF ACTION

Malicious Prosecution

68. Plaintiff repeats and realleges paragraphs 1 through 67 as if fully set forth herein.

69. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

70. Defendants commenced and continued a criminal proceeding against plaintiff.

71. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

72. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

73. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

74. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Unlawful Strip Search

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. Plaintiff was searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

78. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

79. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

83. Defendants failed to intervene to prevent the unlawful conduct described herein.

84. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

87. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Malcolm Melvin demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
August 9, 2018

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER MICHAEL PANDO, Tax No. 952087, PSA 7, 737 Melrose Ave,
Bronx, NY 10455
POLICE OFFICER YAHKEEM WHITE, Tax No. 948604, PSA 7, 737 Melrose Ave,
Bronx, NY 10455

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
August 9, 2018

/s/
STUART E. JACOBS, ESQ.